

Chandra Shekhar v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 12 May 2023 · 2023:AHC:103560-DB · WRIT - C No. - 13811 of 2023 · **Writ disposed; tenant's connection application to be considered under clause 4.4 within eight weeks.**

HEADNOTE

A tenant's writ for an electricity connection, withheld because the landlord refused a no-objection certificate, was disposed of on the Electricity Department's statement that the application could be processed under clause 4.4 of the Electricity Supply Code, 2005. The petitioner was directed to submit the prescribed form and deposit the fee; the respondents were to consider the application within eight weeks in accordance with law. No mandamus to grant the connection was issued.

FACTUAL SUMMARY

Chandra Shekhar claims to be the tenant of a shop at House No. P-84, Kunj Vihar, Sainik Chauraha, Yashoda Nagar, Kanpur Nagar. He applied for an electricity connection, which was not given because the landlord refused a no-objection certificate. On 2 May 2023 the Court directed that necessary parties be brought on record and listed the writ afresh. By 12 May 2023 an amendment application had been filed and impleadment was permitted during the day. The electricity department appeared through counsel.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant connection withheld for want of landlord NOC

HOLDING

Where a tenant's application for a new connection is not being processed because the landlord will not give a no-objection certificate, the licensee may process it under clause 4.4 of the Electricity Supply Code, 2005. The applicant must submit the prescribed form and deposit the requisite fee; once that is done, the licensee shall consider the application within eight weeks in accordance with law. The Court did not direct that the connection be granted. ¶ 2

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents On the Department's statement that the tenant's application could be processed under clause 4.4, the Court directed the petitioner to submit the form and deposit the fee under the Supply Code and required the respondents to consider the application within eight weeks in accordance with law, without granting the connection. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT IS ENTITLED TO ACTUAL RELEASE OF THE CONNECTION ONCE THE CLAUSE 4.4 FORM AND FEE ARE DEPOSITED, THE LANDLORD HAVING REFUSED A NO-OBJECTION CERTIFICATE.

The writ was disposed with a direction to consider the application in accordance with law. ¶ 2